THE STATE

Versus

MURAIRO ZHOU

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDHLOVU JJ
BULAWAYO, 9 June 2026

Criminal review judgment

MUTEVEDZI J: This matter landed in my portal on automatic review in terms of s 57 of the Magistrates Court Act [*Chapter 7:10*] ("the MCA").

[1] Murairo Zhou ("the offender") appeared before the court of a provincial magistrate at Mberengwa facing a charge of "Having Sexual Intercourse with a Young Person" as defined in s 70(1)(a) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] ("the CODE"). The allegations were that during the period extending from 14 February 2026 to 22 March 2026 and at Hilltop Yorks, Mberengwa, the offender unlawfully had sexual intercourse with Unity Zhou, a female juvenile aged 14 years, realising that there was a real risk or possibility that she was below the age of 18 years.

[2] Clearly, the above charge was wrongly drafted. Having sexual intercourse with a young person is an offence that was repealed by the advent of the Criminal Laws Amendment (Protection of Children and Young Persons) Act, 2024. The new nomenclature for that crime is *"Sexual intercourse or performing indecent acts with children between the ages of 12 and 18."*

[3] Apart from the above, the body of the charge itself was correctly worded. It caused little if any prejudice to the accused. The offender pleaded guilty to it. He was convicted and sentenced to 3 years imprisonment of which 1 year was suspended for five years on condition of future good behaviour. The effective sentence is therefore 2 years imprisonment. The conviction is in accordance with real and substantial justice and cannot be faulted. The sentence imposed, however, warrants interference.

[4] In passing sentence, the learned magistrate correctly identified the mitigating factors. These were that the offender was a **youthful first offender aged 21 years and that he pleaded guilty,** thereby saving the court's time and sparing the complainant the ordeal of testifying. The trial court however held that those factors were outweighed by the aggravating circumstances which included the age difference between the offender and the complainant, the nature of the conduct and the exploitation of a vulnerable minor. The court concluded that those aggravating features demanded effective imprisonment.

[5] In my view, the remarks betray an improper exercise of the court's discretion in relation to the choice of sentence. While the learned magistrate identified certain aggravating features, she failed to explain why those factors rendered a non-custodial sentence inappropriate. The record is devoid of any indication that alternative sentencing options were considered before the decision to impose imprisonment was reached. It is therefore difficult to discern the basis upon which the custodial sentence was selected. Sentencing is not a thumb suck process or one where the judicial officer tosses a coin and chooses heads or tails. Instead, a court is required to not only to examine all available sentencing options but to practically indicate in the record of proceedings how it has done so. It must select the least restrictive sanction that adequately meets the interests of justice. Any omission to carry out that exercise is a basis for the vitiation of whatever sentence the court arrives at. In *S* v *Chawanda* 1996 (2) ZLR 8 (H), the High Court ruled that when a statute allows for either a fine or imprisonment, courts must seriously consider imposing a fine first. Imprisonment should be reserved for severe infractions or repeat offenders.

[6] I agree that having sexual intercourse with a child is a serious infraction. The purpose of the law is to protect young persons from sexual exploitation. The courts therefore have an obligation to impose sentences that reflect society's abhorrence of such conduct. But the seriousness of the crime is not only demonstrable through resorting to imprisonment only. The sentencing court is still required to individualise the sentence and strike a proper balance between the interests of society, the offender and the complainant.

[7] In the present matter, the offender was only 21 years old. Although legally an adult, he was himself a youthful offender who had only recently emerged from childhood. In *S* v *Nyenge* HB107-10, MATHONSI J (now JA) stated as follows:

> "Young people are more susceptible to making ill-considered and unwise decisions and are not expected to exhibit the same stability, responsibility and indeed self-restraint as mature adults. Accordingly, more weight should be attached to age in assessing sentence. It is the policy of the courts to, as much as possible, keep young people out of prison. See *S* v *Van Jaarsveld* HB110-90 and *S* v *Shariwa HB73/03;* see also *S* v *Muvhami* HB89/10 at page 3."

[8] Equally significant is that he was a first offender. The importance of preserving youthful first offenders from the corrupting influence of prison has repeatedly been emphasised by the courts. Rehabilitation remains an important sentencing objective. In instances where there is a realistic prospect that an offender can be reclaimed as a useful member of society, proper regard must be given to that as stated in *S v Muvhami* HB89-10 at page 3 that: -

> "Young offenders as well as first offenders should, as much as possible be kept out of prison. In fact, it is now generally accepted that imprisonment is a severe punishment which should be considered as a last resort."

The offender pleaded guilty at the earliest opportunity. it demonstrated his acceptance of responsibility. In *S* v *Sidat* 1997 (1) ZLR 487 (S), the Supreme Court cautioned sentencing courts against paying mere lip service to an accused person's plea of guilty. MCNALLY JA said:

> "A plea of guilty must be recognized for what it is-a valuable contribution towards the effective and efficient administration of justice. It must be made clear to offenders that a plea of guilty, while not absolving them, is something which will be rewarded. Otherwise, again, why plead guity."

[9] A guilty plea is a significant mitigating factor, reflecting an acceptance of responsibility and sparing the complainant, witnesses and the courts the burden of a trial. As such, it is a factor that ought to be accorded meaningful weight and appropriately rewarded in the assessment of sentence.

[10] Whilst the complainant was only 14 years old and therefore entitled to the full protection of the law, the age gap between the parties was not as substantial as the trial court viewed it. It is so, because the offender cannot be placed in the category of mature adults who prey upon very young children. True that he offender was seven years older than the complainant but I have already stated that he was himself barely pout of childhood. Although that does not remove criminal liability, it ought to operate in his favour because it significantly reduces his moral blameworthiness.

[11] The learned magistrate appears, on one hand to have acknowledged the mitigating factors but failed on the other, to accord them sufficient weight. In *S* v *Madembo & Anor* 2003 (1) ZLR 137 (S) at 140B-D it was stated as follows:

> "Judicial officers have often been criticised for failing to take into account factors of mitigation in assessing sentence even where, as in this case, they said that they did so. In some instances, they have been criticised for failing to accord due and appropriate weight to factors of mitigation. In other cases, they have been criticised for paying lip-service to those factors. In *S v Buka* 1995(2) ZLR 130(S) EBRAHIM JA said that judicial officers do not always give sufficient weight to a plea of guilty."

[12] As a result, the sentence placed undue emphasis on retribution and deterrence at the expense of other equally important objectives of punishment. In my view, the effective sentence of two years imprisonment imposed upon this youthful first offender falls outside the range that is appropriate in the circumstances of the case. Having concluded that a custodial term in the region of 24 months imprisonment was appropriate, the trial magistrate was obliged to consider the suitability of community service as an alternative sentencing option. If she considered community service inappropriate, she ought to have clearly explained the reasons for rejecting it. The record does not show any such reasons creating the impression that the option of community service was not properly considered. See *S v Mabhena* 1996 (1) ZLR 134(H) at 140 C-F.

[13] Because of that omission, the sentence is, in my view, susceptible to my interference. It is disproportionate to both the offence and the offender. Having regard to all the circumstances of the case, I am satisfied that the objectives of sentencing could adequately have been met by the imposition of a sentence of community service. However, the offender has already serviced more than 1 ½ months imprisonment.

1. Accordingly, it is ordered that

    1. **The sentence imposed against the offender be and is hereby quashed**
    2. **The matter is remitted to the trial court for it to resentence the offender taking into account the principles set out in this judgment.**

3. **The one and a half months imprisonment which the offender has already served must be factored in when assessing the new sentence**
4. **The assistant clerk of court at Mberengwa Court must immediately issue a warrant for the liberation of the offender simultaneously with a summons requiring him to appear before the trial magistrate for resentencing.**

MUTEVEDZI J……..

NDHLOVU J…….I agree